Harris County District Court

Cause No. 2024-CV-0018

Lisa Mcdaniel, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-10-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, for its answer to Plaintiff's Original Petition, generally denies each and every allegation contained therein and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant further asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to confirm that the adjacent lane was clear before moving, and failed to yield the right of way as required when cahnging lanes. Under Chapter 33 of the Texas Ciivl Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff.

Second, the injuries and damages claimed were not proximately caused by the subject collision. Plaintiff's alleged conditions may be attributable to preexisting or unrelated medical conditions, or to subsequent events, and Defendant is not liable for those.

Third, Plaintiff has fialed to mitigate damages. Plaintiff did not follow reasonable medical advice or undertake reasonable steps to limit the claimed losses, and any recovery must be barred or reduced accordingly.